



CHAPTER clxxi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow Corporation (Police). [15th August 1904.] A.D. 1904.

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the Schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order as amended and set out in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Glasgow Corporation (Police) Order Confirmation Act 1904. Short title.

A D. 1904.

S C H E D U L E.

GLASGOW CORPORATION (POLICE).

Provisional Order to authorise the Corporation of the city of Glasgow to raise further moneys and to acquire additional lands in connection with Ruchill Hospital to enter into an agreement with the county council of the county of Renfrew as to the sewage of a portion of that county to confer upon the said Corporation further powers as to police and public health and for other purposes.

WHEREAS it is expedient that the Corporation of the city of Glasgow (hereinafter called "the Corporation" and "the city" respectively) should be authorised to borrow further moneys for the police purposes of the Glasgow Police Acts 1866 to 1903 and this Order to sell lands not required for such purposes and to provide a sinking fund :

And whereas it is expedient that certain of the Acts relating to the city should be repealed or amended as by this Order provided :

And whereas it is expedient that further powers with reference to police and public health should be conferred upon the Corporation as by this Order provided :

And whereas it is expedient that the agreement contained in the First Schedule to this Order between Emily Georgina Campbell or Carter-Campbell of Possil and the Corporation authorising the Corporation to acquire additional lands for public health purposes should be confirmed :

And whereas it is expedient that the agreement contained in the Second Schedule to this Order between the Corporation and the county council of the county of Renfrew making provision for the reception into the sewers of the Corporation of the sewage of a certain portion of the county of Renfrew should be confirmed :

And whereas it is expedient that the other powers in this Order contained should be conferred upon the Corporation :

And whereas a plan showing the lands required or which may be taken for the purposes or under the powers of this Order and a book of reference to such plan containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands were duly deposited with the principal sheriff clerk of

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the county of Lanark and are hereinafter respectively referred to as the deposited plan and book of reference : A.D. 1904.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Glasgow Corporation (Police) Order 1904. Short title
and citations.

This Order and the Glasgow Police Acts 1866 to 1903 and any other Act or Order passed during the present session of Parliament relating to the police purposes of the Corporation may be cited as the Glasgow Police Acts 1866 to 1904.

This Order and the Glasgow Sewage Acts 1891 to 1903 and any other Act or Order passed during the present session of Parliament relating to the sewage purposes of the Corporation may be cited as the Glasgow Sewage Acts 1891 to 1904.

This Order and the Glasgow Corporation Acts 1855 to 1903 and any other Act or Order passed during the present session of Parliament relating to the Corporation may be cited as the Glasgow Corporation Acts 1855 to 1904.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Police.

Part III.—Public Health.

Part IV.—Sewage.

Part V.—Miscellaneous.

Order
divided into
Parts.

PART I.

PRELIMINARY.

3. The Lands Clauses Acts are (except where expressly varied by this Order) incorporated with and form part of this Order and this Order shall be deemed to be a special Act within the meaning of those Acts. Incorporation of Lands
Clauses Acts.

4. Sections 4 108 109 111 114 115 117 to 134 403 and 404 of the Act of 1866 and section 8 of the Glasgow Building Regulations Act 1900 shall so far as applicable and not varied Application
of sections of
Glasgow
Police Act
1866 and

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A.D. 1904.
—
Glasgow
Building
Regulations
Act 1900.

by or inconsistent with the provisions of this Order extend and apply to the purposes thereof as if they had been re-enacted therein and the expression "police offence" where it occurs in the sections so extended and applied shall include any offence punishable under this Order.

Interpreta-
tion.

5. In this Order the several words and expressions to which meanings are assigned by the Acts incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and for the purposes of this Order the expressions "the promoters of the undertaking" "the commissioners" and "the company" in the incorporated Acts mean respectively the Corporation.

Further
interpreta-
tion.

6. The following words and expressions in this Order have the meanings hereby assigned to them (that is to say):—

"The city" means the city and royal burgh of Glasgow;

"The Corporation" means the Corporation of the city;

"Sheriff" means the sheriff of the county of Lanark and includes his substitutes;

"The Police Acts" means the Glasgow Police Acts 1866 to 1904;

"The Act of 1866" means the Glasgow Police Act 1866;

"The Act of 1890" means the Glasgow Police (Amendment) Act 1890;

"The Act of 1898" means the Glasgow Corporation (Sewage &c.) Act 1898 and includes any Act or Order amending the same;

"The Public Health Act" means the Public Health (Scotland) Act 1897 and includes any Act amending the same;

"Sanitary inspector" means any inspector of nuisances appointed by the Corporation under the Act of 1866 and any sanitary inspector appointed by the Corporation under the Public Health Act;

"Magistrate" means the Lord Provost or one or more of the magistrates of the city sitting in any of the police courts of the city acting in pursuance of the Police Acts including the judges of police appointed by the City of Glasgow Act 1891 the bailie of the river and firth of Clyde and his depute and any stipendiary magistrate of the city;

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“Police purposes” means any purposes of the Police Acts except sewage purposes as such are defined in the Glasgow Police (Sewage &c.) Act 1891; A.D. 1904.
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“Public health purposes” means any purposes of the Public Health Act or of the Police Acts in so far as the latter relate to public health;

“Procurator fiscal” means the procurator fiscal of police appointed in pursuance of the Police Acts and includes any person authorised by the Police Acts to act as procurator fiscal.

PART II.

POLICE.

7. To enable the Corporation to defray the cost of new police buildings fire stations halls public baths and wash-houses and for other police purposes the Corporation in addition to the moneys which they are now authorised to borrow by any of the Police Acts for such purposes may borrow any moneys which they may require not exceeding in the whole the sum of two hundred and fifty thousand pounds on the security of the assessments leviable in virtue of the Police Acts and they shall apply the same for the said police purposes so far as such purposes are properly chargeable against capital and the Corporation may reborrow any moneys so borrowed which have been repaid by them otherwise than by means of the sinking fund hereinafter provided. Further power to borrow for police purposes.

8. The Corporation shall from and after the first day of June one thousand nine hundred and four annually set apart out of the police assessment a sum equal to not less than two pounds ten shillings per centum on the amount borrowed by them under the authority of this Part of this Order for police purposes except so far as the same may have been paid off by the sale of lands or buildings as by this Order provided and they shall apply the sum so set apart as a sinking fund in paying off the principal sum so borrowed. Sinking fund.

9. Sections seven and eight of the Act of 1890 are hereby repealed and in place thereof it is enacted as follows:— Repeal of certain sections of Glasgow Police (Amendment) Act 1890.

(1) The sanitary inspector or any member of his staff duly authorised by the Corporation for that purpose and exhibiting his authority if called upon so to do may at any reasonable hour in

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A.D. 1904.

Houses to be
purified on
certificate of
sanitary
inspector.

the daytime enter any house building or other premises or the pertinents thereof where he has reason to believe that such house building or premises or the pertinents or any part thereof are not in a cleanly condition and may examine and inspect the same and if he is of opinion that such house building or other premises or the pertinents thereof or any part thereof are not in a cleanly condition he shall give notice in writing to the occupier of such house building or other premises or part thereof and to the proprietor thereof in cases where there is no occupier requiring such occupier or proprietor to cleanse whitewash or purify the same in such manner as he shall direct and if the person to whom such notice is given fail to comply therewith within forty-eight hours after the receipt thereof he shall be liable to a penalty not exceeding forty shillings and to a further penalty not exceeding ten shillings for every day during which such offence shall continue after conviction therefor and the sanitary inspector or such duly authorised member of his staff may if he think fit cause such house building or other premises or the pertinents thereof or any part thereof to be cleansed whitewashed or purified and the Corporation may recover in a summary manner as damages the expenses incurred in so doing from the person in default.

Articles of
bed or body
clothing or
of furnishing
to be puri-
fied.

(2) The sanitary inspector or any member of his staff duly authorised by the Corporation for that purpose and exhibiting his authority if called upon so to do may at any reasonable hour in the daytime enter any house where he has reason to believe that any articles of bed or body clothing or of furnishing therein or in any part thereof are in a dirty filthy or unwholesome condition and may examine and inspect all such articles and if the sanitary inspector or such duly authorised member of his staff is of opinion that any such articles are in such condition he shall give notice in writing to the occupier of such house or part thereof requiring him to cleanse or purify such articles of bed or body clothing or of furnishing in such manner as he shall direct and if the person to whom such notice is given fail to comply therewith within twenty-four hours after receipt thereof he shall be liable to a penalty not exceeding ten shillings for every day during which such offence shall continue after conviction therefor and the sanitary inspector or such duly authorised member of his staff may if he think fit cause any such articles of bed or body clothing or of furnishing in any such house or part thereof to be cleansed or purified and the Corporation may recover in a summary manner as damages the expenses incurred in so doing from the person in default.

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(3) If any occupier or proprietor of such house building or other premises or the pertinents or any part thereof or the occupier of such house or part thereof as the case may be shall object to the entrance thereto of such sanitary inspector or member of his staff as aforesaid it shall not be lawful for such inspector or member to enter without a warrant from a magistrate authorising him to do so and the magistrate is hereby authorised to grant such warrant and on such warrant being obtained and exhibited any person who refuses to admit resists or incites or assists any other person to obstruct or resist the sanitary inspector or other such duly authorised member of his staff in carrying out the provisions of the two preceding subsections shall for every such offence be liable to a penalty not exceeding five pounds.

A.D. 1904.

Penalty for refusing admission resisting or inciting to resist.

(4) "House" for the purposes of this section shall have the meaning assigned in section 3 of the Act of 1890 and shall include any cellar vault or underground room used as a dwelling-house or sleeping apartment.

Definition of "house."

10. Section 378 of the Act of 1866 is hereby amended to the effect of substituting for the words "two thousand" therein occurring the words "two thousand six hundred" and such amendment shall apply also to the provisions of section 28 of the Act of 1890 in so far as it refers to and incorporates said first-mentioned section.

Amendment of section 378 of Glasgow Police Act 1866 and section 28 of Glasgow Police (Amendment) Act 1890.

11. Where two convictions against the provisions of section 28 of the Act of 1890 (as amended by this Order) relating to the overcrowding of any house shall have taken place within the period of three months whether the person so convicted was or was not the same it shall be lawful for the magistrate on the application of the procurator fiscal to direct the closing of such house for such time as he may deem necessary. Provided always that before disposing of such application the magistrate shall require the proprietor of such house to show cause against the granting of such application within such time as he may consider reasonable and shall give such proprietor an opportunity of being heard before him and if such proprietor appear shall hear him and such evidence as he may adduce. Provided further that such proprietor if aggrieved by any order of the magistrate directing the closing of such house may within three days from the date of such order appeal to the sheriff and the sheriff shall hear the said proprietor and the procurator fiscal and shall with all reasonable dispatch and if practicable

Closing of overcrowded houses after two convictions.

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A.D. 1904. — within seven days after the presentation of the appeal dispose of the same and his decision shall be final and not subject to review.

“House” for the purposes of this section and of section 28 of the Act of 1890 shall have the meaning assigned in section 3 of the Act of 1890 and shall include any cellar vault or underground room used as a dwelling-house or sleeping apartment.

Penalty for
damaging or
improperly
fouling
waterclosets
&c.

12. If any watercloset earthcloset privy or similar convenience used in common by the occupiers of two or more separate dwelling-houses or by other persons or the walls floors seats or fittings of such watercloset earthcloset privy or similar convenience is or are in the opinion of the sanitary inspector owing to the want of the regular and proper cleansing thereof or through the misuse thereof damaged or improperly fouled or is or are in such a state as to be a nuisance or annoyance to any of the persons using or entitled to use the same such of the persons having the use thereof in common as may be in default or in the absence of proof satisfactory to the magistrate before whom the case is tried as to which of the persons having the use thereof in common is in default each of those persons shall be liable to a penalty not exceeding ten shillings and to a penalty not exceeding five shillings for every day during which the offence continues after conviction for the offence.

PART III.

PUBLIC HEALTH.

Power to
take lands.

13. Subject to the provisions of this Order the Corporation may enter upon take and use for public health purposes the lands hereinafter described and delineated on the deposited plan and described in the deposited book of reference The lands hereinbefore referred to are certain lands in the parish of Glasgow and the city and county of the city of Glasgow and county of Lanark situate and lying within an area bounded by a line commencing at a point in the southern boundary of Ruchill Hospital ground in line with the eastern boundary of Ruchill Park thence southward along the eastern boundary of Ruchill Park and line thereof until it reaches the northern boundary of the Western Saw Mills thence eastward along the said northern boundary and line thereof to the north-west side of the Caledonian Railway (Hamiltonhill Branch) thence north-eastward along the north-west side of the Caledonian Railway (Hamiltonhill Branch) to the southern boundary of

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Ruchill Hospital thence westward along the said southern boundary to the point first mentioned. A.D. 1904.

14. The agreement between Emily Georgina Campbell or Carter-Campbell of Possil in the county of Lanark of the first part and the Corporation of the second part as set forth in the First Schedule to this Order is hereby confirmed and made binding upon the parties thereto. Upon the passing of the Act confirming this Order the said Emily Georgina Campbell or Carter-Campbell and any future heirs of entail in possession of the estate of Possil shall be entitled and bound to sell and convey to the Corporation who shall be entitled and bound to purchase the lands and others specified in the said scheduled agreement all on the terms and conditions therein contained.

Agreement
with Mrs.
Carter-
Campbell
confirmed.

15. The sanitary inspector or any member of his staff duly authorised by the Corporation for that purpose and exhibiting his authority if called upon so to do may subject to the consent of the school board or other managers or governors owning or occupying any school within the city and at such times as said board or other managers or governors may appoint enter any such school under the control of such school board or other managers or governors and if on examination such inspector or such member of his staff shall be of opinion that the person or clothing of any child attending such school is infested with vermin or is in a foul or filthy condition the sanitary inspector shall give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to properly cleanse the person and clothing of such child within twenty-four hours after the receipt of such notice. The sanitary inspector or such member of his staff shall have the power when in his discretion he shall see fit to permit any such parent guardian or other person who shall apply to him to have the use free of charge of any apparatus which the Corporation possess for cleansing the person or clothing of such child. The use of such apparatus shall not be considered to be parochial relief to the said parent guardian or other person and no such parent guardian or other person shall by reason of such use be deprived of any right or privilege or be subject to any disqualification or disability. If the person to whom such notice is given fail to comply therewith within the prescribed time the sanitary inspector or such member of his staff shall cause the person and clothing of such child to be properly cleansed in such suitable premises as the Corporation may

Cleansing of
children in
unclean con-
dition attend-
ing school
and their
clothing.

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A.D. 1904. — provide and if necessary for that purpose may without any warrant other than this Order convey to such premises and there detain such child until such cleansing is effected but not later than ten o'clock in the evening of any day. Provided always that the examination or cleansing of female children shall be effected by the female members of the sanitary inspector's staff duly authorised by the Corporation.

The Corporation may expend any reasonable sum on buildings apparatus and attendants that may be required for carrying out the provisions of this section and any expenses for these purposes may be defrayed out of the public health general assessment leviable under the authority of the Public Health Act.

PART IV.

SEWAGE.

Agreement with county council of county of Renfrew regarding additional sewage area confirmed.

16. The agreement between the Corporation and the county council of the county of Renfrew (hereinafter called "the county council") set forth in the Second Schedule to this Order is hereby confirmed and made binding upon the parties thereto. Upon the passing of the Act confirming this Order the area specified and described in the said scheduled agreement shall be treated in all respects by the Corporation and by the county council as if it had originally been included in and had formed part of Area No. 1 as described in the Fourth Schedule to the Act of 1898 and the whole provisions and powers contained in the Act of 1898 and applicable to the said Area No. 1 are hereby extended and made applicable to the area specified and described in said scheduled agreement as if such area had originally been included in and had formed part of the said Area No. 1.

PART V.

MISCELLANEOUS.

Power to sell land not required for police and public health purposes.

17. Notwithstanding any provision to the contrary in any Acts contained the Corporation may in their discretion sell feu or otherwise dispose of any lands or buildings or any part or portion thereof acquired under the powers and not required for the purposes of the Police Acts or this Order and shall from time to time apply all capital sums received by them for lands or buildings so sold feued or otherwise disposed of in paying off an equivalent part of any sums borrowed under the authority of the Police Acts or this Order.

18. In all cases of disputed compensation under any of the Acts cited in section 1 of this Order whereby the Corporation is entitled to acquire land compulsorily under the Lands Clauses Acts or whereby any compensation payable by the Corporation falls to be determined under the last-mentioned Acts it shall unless both parties concur in the appointment of a single arbiter in terms of the last-mentioned Acts be in the power of either party to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversman sheriff or jury acting under the last-mentioned Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall notwithstanding anything in those Acts determine the amount of the expenses in the arbitration and such determination shall be final The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland The expression "land" in this section includes water and any right or servitude to or over land or water Provided always that this section shall not apply to lands delineated on the plans and described in the books of reference respectively deposited in connection with and prior to the passing of any of the said Acts cited in the said section 1 which the Corporation has under the said Acts or any of them been authorised to acquire compulsorily And provided further that this section shall not apply in any case where the Act authorising the acquisition of land or determining the compensation aforesaid makes special provision for the appointment of a single arbiter.

A.D. 1904.

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Compensation for land to be settled by single arbiter.

19. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and if paid out of borrowed money shall be repaid out of revenue within five years after the passing of the Act confirming this Order.

Expenses of Order.

A.D. 1904.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

PROVISIONAL AGREEMENT between Mrs. EMILY GEORGINA CAMPBELL or CARTER-CAMPBELL of Possil in the county of Lanark (hereinafter called "the first party") of the first part and the CORPORATION OF THE CITY OF GLASGOW (hereinafter called "the second party") of the second part.

WHEREAS the second party are desirous of acquiring (as an addition to the grounds of Ruchill Hospital Glasgow) from the first party the area of ground delineated and tinted green in outline on the plan annexed and signed as relative hereto part of the first party's said estate of Possil :

And whereas the first party as heiress of entail in possession of the said estate of Possil and the second party have made the agreement underwritten with reference thereto :

Therefore the parties have agreed and hereby agree with and to each other as follows :—

First The first party agrees to sell to the second party and the second party hereby agree to purchase the said area of ground delineated and tinted green in outline on the foresaid plan and extending to eleven acres three roods thirty-three poles or of whatever extent less or more said area shall on re-measurement be found to contain.

Second The price of the said piece of ground shall be at the rate of six hundred and fifty pounds per acre with interest at the rate of five pounds per centum per annum from the term of Martinmas nineteen hundred and three until consignation of the price as after mentioned which consignation shall be made on or before the eleventh day of November nineteen hundred and four.

Third Whereas by minute of agreement dated 17th 18th 20th 23rd and 24th March 1876 entered into between the deceased John Campbell Esquire of Possil of the first part the trustees of the deceased James Davidson Esquire of Ruchill of the second part and certain other parties of the third and fourth parts it was inter alia agreed to open up a road or street of sixty feet in width therein mentioned part of which street was intended to be formed on said area of ground hereby agreed to be sold to the extent of the strip of ground on the north side thereof tinted pink on the foresaid plan and that on the terms and under the conditions therein expressed as the said minute of agreement which is referred to for its terms and with which the second party acknowledge themselves to be cognisant fully bears and which

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street (which has not been formed and the necessity for which the second party suggest no longer exists owing to change in circumstances and the formation of the street now known as Bilsland Drive) so agreed to be opened up the second party propose on their acquiring said area of ground to shut up so far as intended to be formed upon (A) subjects acquired by the second party in virtue of the Glasgow Corporation Act 1892 for the purposes of that Act and (B) said area of ground hereby agreed to be sold Therefore the second party hereby bind themselves to free and relieve the first party and her successors in the said estate of Possil of all claims against her or them competent to any of the parties to said agreement or to any person or persons to whom they or any of them may have assigned any right competent to them therein in respect of the non-fulfilment thereof by the first party and of all costs damages and expenses to which the first party shall be put or which may be awarded against her in respect of any such claims being made or threatened provided always that the first party and her successors shall at once intimate to the second party any such claim or threatened claim and shall hand over to the second party if desired by them the conduct of the negotiations with the claimants or the defending of the claim.

A.D. 1904.

Fourth Provided that the ground therefor so far as outwith the ground hereby agreed to be sold be given up free for that purpose by the first party or her feuars disponees or successors the second party bind themselves to form at their own expense when called upon by the first party or her successors the street 60 feet wide shown on said plan on the south side of the area of ground agreed to be purchased by them with footpath kerb and water channel which street shall be formed to the extent of one half of the breadth thereof on the ground hereby agreed to be sold and to the extent of the other half of the breadth thereof on other land belonging to the first party or her feuars and to maintain the same in all time thereafter to the satisfaction of the first party the second party having such right as is competent to the first party to recover payment from any other person or persons liable therefor of their proportion of the expense of forming and maintaining said street which right the first party binds herself and her successors to convey to the second party Declaring that in any feu rights or dispositions of adjoining ground to the south of said street the first party shall bind the feuar or disponee to pay one half of the cost of forming and maintaining said 60 feet street.

Fifth The second party further bind and oblige themselves when called upon by the first party or her successors to form at their own expense and when formed to maintain to the satisfaction of the first party a street 36 feet wide from the point marked A to the point marked B on the foresaid plan on the west side of the said area of ground agreed to be purchased by them said street to be made wholly on their own ground.

Sixth The second party bind and oblige themselves to form at their own expense a gateway into Ruchill Park not less than 15 feet in breadth at the point marked —→ on said plan as an access to said park for the convenience of the first party and her feuars disponees and tenants which gate

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A.D. 1904. — and access to said park shall be subject to the provisions of the Glasgow Public Parks Acts 1878 to 1903 and any byelaws made by the Corporation thereunder.

Seventh Whereas the first party is heir in possession of the said estate of Possil under a deed of entail prohibiting alienation this agreement is entered into by her and shall only be binding on her in the event of the second party obtaining in the session of 1904 parliamentary power enabling the first party or her successors to sell and the second party to acquire the said land by agreement and in that event this agreement shall be subject to the provisions of the Lands Clauses Acts.

Eighth The second party hereby undertake to make the necessary application to Parliament for the necessary powers to enable the first party or her successors to sell and the second party to acquire the said ground and to use their best endeavours to obtain the same during next session 1904.

Ninth On obtaining said powers to sell and purchase the first party or her successors shall on consignation of the price with interest from Martinmas 1903 grant in favour of the second party a valid conveyance of said area of ground in ordinary form The second party shall be entitled to the rents of the said area of ground from and after the said term of Martinmas 1903 but they shall be bound to settle all claims competent to the tenants and to relieve the first party thereof.

Tenth In the event of the second party failing to obtain the said statutory powers during next session 1904 this agreement shall come to an end except that—

(1) The second party shall be bound to pay to the first party interest on the said price as herein defined from Martinmas 1903 to Martinmas 1904 :

(2) The whole expenses incurred by the first party to her agents engineers and others for the negotiations connected with the preparation of this agreement shall be paid by the second party.

Eleventh In the event of the second party obtaining the aforesaid statutory powers they shall pay all the expenses mentioned in the preceding article and all other expenses relating to a compulsory purchase.

Twelfth Should any question arise between the parties regarding the true intent and meaning of these presents or the adjustment of the disposition to follow hereon the same are hereby referred to the Professor of Conveyancing in the University of Edinburgh for the time being whom failing to John Jackson Coats Esq. writer Glasgow whom failing to an arbiter to be mutually appointed or failing agreement to an arbiter to be appointed by the sheriff of the county of Lanark on the application of either party whose awards whether interim or final shall be binding upon both parties.

Thirteenth This agreement shall be binding on the future heirs of entail only in so far as the first party is legally entitled to bind them and in the event of her death before said parliamentary powers are obtained the

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second party shall have no claim against the personal representatives of the first party in respect thereof; and A.D. 1904.

Lastly The parties hereto bind and oblige themselves to perform their respective parts of the premises to each other under the penalty of one thousand pounds to be paid by the party failing to the party performing or willing to perform over and above performance This agreement is subject to such alterations as the Secretary for Scotland or Parliament may make thereon during the progress of the Order but if any material alteration be made thereon it shall be competent for either party hereto to withdraw the agreement.

In witness whereof these presents written on this and the three preceding pages by Robert Christie Dewar clerk to the firm of John and Francis Anderson Writers to the Signet Edinburgh are together with the said plan annexed hereto executed in duplicate by the parties hereto as follows videlicet They are sealed with the corporate and common seal of the said the Corporation of the City of Glasgow and subscribed by William Fleming Anderson and John Battersby two of their number acting by their authority and on their behalf as authorised at a meeting of the said Corporation (Police Department) and by John Lindsay writer Glasgow interim clerk to the said Corporation (Police Department) duly authorised all at Glasgow on the twenty-third day of November nineteen hundred and three before these witnesses Alexander Clarke Mackenzie and Angus Miller both clerks in the employment of the said Corporation (Police Department) and they are subscribed by the said Mrs. Emily Georgina Campbell or Carter-Campbell at London on the thirtieth day of the said month of November and year last mentioned before these witnesses Albert Michael Carter Civil Service retired Royal Hospital Chelsea and Lizzie Hunter parlour maid at Fourteen Evelyn Gardens South Kensington London S.W.

EMILY GEORGINA CARTER-CAMPBELL.

ALBERT M. CARTER Witness.

LIZZIE HUNTER Witness.

W. FLEMING ANDERSON.

JOHN BATTERSBY.

J. LINDSAY.

A. C. MACKENZIE Witness.

ANGUS MILLER Witness.

L.S.

A.D. 1904.

THE SECOND SCHEDULE.

MINUTE of AGREEMENT between the CORPORATION OF THE CITY OF GLASGOW acting under the Glasgow Police Acts eighteen hundred and sixty-six to nineteen hundred and one of the first part (hereinafter called "the Corporation") and the COUNTY COUNCIL OF THE COUNTY OF RENFREW of the second part (hereinafter called "the county council").

WHEREAS the Glasgow Corporation Sewage &c. Act eighteen hundred and ninety-eight contains provisions for the reception into the sewers to be constructed by the Corporation under that Act of the sewage from the Renfrewshire areas described in the Fourth Schedule of that Act and for the treatment thereof at the works constructed by the Corporation in respect of the payments to be made by the county council as set forth in section thirty-nine of said last-mentioned Act :

And whereas by section forty-one of said last-mentioned Act it is provided that the Corporation shall admit to such of the sewers by that Act authorised as may be constructed the drainage of such areas or portions of inter alia the county of Renfrew as the levels of such sewers and of the ground will permit that the county council may require the Corporation to connect at their (the county council's) expense any sewer or drain formed or to be formed for or containing the sewage of the county of Renfrew with the sewers by said last-mentioned Act authorised and be permitted to discharge sewage by means of such county sewers into such sewers where the capacity and level of the sewers and other works by said last-mentioned Act authorised admit thereof on such terms and conditions and in respect of such payments as may from time to time be mutually arranged between the Corporation and the county council or as failing agreement may from time to time be determined by an arbiter to be appointed as therein set forth :

And whereas the Corporation have agreed that the sewage from the area after described in view of the special circumstances thereof and not as forming a precedent for other Renfrewshire areas shall be received and treated by the Corporation on such terms and conditions and in respect of such payments as if said area had originally been part of the Renfrewshire area number one described in said Schedule :

Therefore the parties agree and undertake and oblige themselves and their successors as follows vizt. :—

First The first party shall receive convey and treat the sewage of the area at Bogton in the parish of Cathcart defined within the following boundaries and depicted within the boundaries coloured red on the plan docqueted and subscribed as relative hereto as if the said area after described had been originally included in the said Renfrewshire area number one

[4 EDW. 7.] *Glasgow Corporation (Police) Order* [Ch. clxxi.]
Confirmation Act, 1904.

described in the said Schedule vizt. Commencing at a point on the east side of the old Netherlee Road being the south-eastmost point in the boundary of Cathcart area number one referred to in the schedule to the Glasgow Corporation Sewage Act eighteen hundred and ninety-eight thence in a south-westerly direction along the south-east side of said road till it meets the Clarkston Road thence southward and south-westward along the south and south-east side of the Clarkston Road to a point one hundred yards or thereby south of the south side of the road of approach to Netherlee House thence across the Clarkston Road to the east end of the south boundary of inclosure three hundred and one thence in a north-westerly direction along the south boundaries of inclosures three hundred and one three hundred two hundred and ninety-eight and two hundred and ninety-five till the boundary dividing the parish of Cathcart from the parish of Eastwood is reached thence in a north-eastward north-westward and northerly direction along said parish boundary till it reaches the east side of the public road leading from Woodend to Giffnock and across said road to a point on the west side of the road forty yards south-west of the south-east end of the south-west boundary of inclosure two hundred and seventy-three thence north-eastward and northward along the north-west and west side of said road to the boundary of Cathcart and Eastwood parishes being a point in the south boundary of area number one thence south-eastward south-westward south-eastward and eastward along the boundary of said area number one to the point of commencement all as delineated in red upon the Ordnance Survey map eighteen hundred and ninety-eight signed and dated as relative hereto. A.D. 1904.

Second If so desired by the county council and at their expense in the event of the same being opposed by any outside authority corporation or person the Corporation shall include in the next Police Omnibus Bill or Police Provisional Order promoted by them provisions for obtaining so far as that may be required parliamentary sanction to the immediately foregoing article and for conferring so far as that may be necessary on the county council power to impose within the area above described the sewage purification assessment defined in section thirty-nine of the last-mentioned Act and all other necessary powers in terms to be adjusted between the Corporation and the county council; and

Third The parties hereto shall bear the whole expenses of and incident to this agreement equally.

And the parties consent to the registration hereof for preservation and execution.

In witness whereof these presents written on this and the two preceding pages by John Gill clerk to Hill and Hoggan writers Glasgow are executed by the parties hereto as follows in duplicate together with plan relative hereto annexed to the principal deed vizt. They are executed by the said Corporation under their corporate and common seal and by the subscription of Frank Israel Cohen and William Fleming Anderson two of their number and by John Lindsay writer Glasgow clerk to the said Corporation

[Ch. clxxi.] *Glasgow Corporation (Police) Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. (Police Department) all acting by their authority and on their behalf and duly authorised all at Glasgow upon the twenty-ninth day of April nineteen hundred and three before these witnesses Alexander Clarke Mackenzie and Angus Miller both clerks in the employment of the said Corporation (Police Department) and they are executed by the said county council of the county of Renfrew under their common seal and by the subscription of Henry Erskine Gordon and Robert King two of the members of and James Caldwell writer in Paisley clerk all of and for and on behalf of and as authorised by the said county council of the county of Renfrew at Paisley upon the nineteenth day of May and year last mentioned before these witnesses John Greig Kennedy clerk to the said Hill and Hoggan and James Caldwell junior writer in Paisley.

FRANK I. COHEN.
W. FLEMING ANDERSON.
J. LINDSAY.

L.S.

A. C. MACKENZIE Witness.
ANGUS MILLER Witness.

H. E. GORDON.
ROBERT KING.
JA. CALDWELL County Clerk.

L.S.

JOHN G. KENNEDY Witness.
JA. CALDWELL Junr. Witness.

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